

17. 9:00 AM CASE NUMBER: N23-2108
CASE NAME: GLEN STEWART VS. SUPERIOR COURT OF CALIFORNIA, COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: REQUEST FOR JUDICIAL NOTICE**
FILED BY: STEWART, GLEN
TENTATIVE RULING:

Plaintiff Glen Stewart ("Plaintiff") filed a Motion for Request for Judicial Notice on October 20, 2025 (the "Request for Judicial Notice"). The motion was set for hearing on February 9, 2026.

Analysis

The Request for Judicial Notice requests the Court take judicial notice of certain factual matters described in the motion and various attached exhibits:

1. My on-call work as a pathologist for Contra Costa County was a routine/basic assigned/required duty of the job. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and payroll services. An email from the Director of Payroll Services to CCCERA states that pathologists are mandated to be on-call because of the nature of their specialty. Also my job offer letter states that on-call work is part of my regular work week.
See Appendix A.

2. During my on-call work as a pathologist for Contra Costa County, I was working as the Laboratory Director for the clinical laboratory at Contra Costa Regional Medical Center (CCRMC). The clinical laboratory at CCRMC is open 24 hours. California Code of Regulations state that when an acute care hospital, such as the hospital at CCRMC, is open, a physician shall have overall responsibility for the clinical laboratory service and be on duty or on call at all times, and that physician shall be a Board Certified Pathologist. This is a well-known fact and common knowledge as can be stated from my employer, past and present pathologist co-workers, the medical staff office, and all clinical laboratory staff.
See Appendix B.

See Request for Judicial Notice, p. 2.

These matters are not the proper subject of either mandatory or permissive judicial notice. Evid. Code §§ 452 and 453; see Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 9:54.

Disposition

The Court finds and rules as follows:

1. The Request for Judicial Notice is DENIED.
2. The Court shall enter the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1896

CASE NAME: CLAIM OF: JERRY BURNS, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Petitioner Jerry Burns Sr ("Plaintiff") filed a Petition for Approval of Compromise on or about September 25, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 9, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of orders lodged with the moving papers.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-01137

CASE NAME: BRAYAN RUBIO VS. HATEM AHMED

***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF
CLAUDIA RUBIO AT DEPOSITION AND PRODUCTION OF RECORDS**

FILED BY: USEN, IME I

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed February 5, 2026 by defendant IME I. USEN ("Defendant"), the Motion to Compel Attendance and Testimony filed September 19, 2025 and scheduled for hearing on February 23, 2026 is DROPPED from calendar and the hearing date VACATED.